



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAR 10 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11846

EXPIRATION DATE: May 31, 1997 (or upon completion of the one-time shipment, whichever occurs first).

1. GRANTEE: Hughes Space and Communications Group
El Segundo, CA.
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time shipment by vessel of certain Class 3 and Division 2.2 materials in the same intermodal freight container as not subject to segregation requirements in 49 CFR Part 176. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 176.83(d).
5. BASIS: This emergency exemption is based on the application of Hughes Space and Communications Group dated March 4, 1997, submitted in accordance with 49 CFR 107.117 and the determination that it is necessary to preclude a serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Helium, compressed	2.2	UN1046	n/a
Nitrogen, compressed	2.2	UN1066	n/a
Isopropanol	3	UN1219	II

7. PACKAGING AND SAFETY CONTROL MEASURES:

PACKAGING - Packagings for the materials listed in paragraph 6 of this exemption must be in accordance with the requirements contained in 49 CFR Parts 171-180.

8. SPECIAL PROVISIONS:

a. The shipper using this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

b. This exemption also serves as a Competent Authority Approval (CA-9703004) under the IMDG Code General Introduction Section 15.2.3.1.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo vessel.10. MODAL REQUIREMENTS:

A copy of this exemption must be carried aboard the cargo vessel used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq.:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

continuation of DOT-E 11846

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Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 10 1987

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
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